

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/24/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0002656

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: JOSHUA REDNER

and

RESPONDENT: STELA LLUSHA

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – CUSTODY/CHILD
SUPPORT/VISITATION
2) CASE PROGRESS CONFERENCE

RULING

This matter is set for hearing on Petitioner/Father's 4/22/2026 Request for Order ("RFO") re: custody/visitation regarding the parties' daughter, Skyla (DOB 8/14/2019), child support, and attorneys' fees and costs. Together with his RFO, Father filed a supporting Declaration and an Income & Expense Declaration ("I&E").

Mother filed a Responsive Declaration on 7/13/2026, together with an I&E and Respondent's Statement of Support Calculations. She also lodged her 2024 and 2025 State and Federal Income Tax Returns under seal.

On 7/17/2026, Father filed a Statement of Agreement/Disagreement with the Family Court Services Recommendation, Memorandum of Points and Authorities re: Drug Testing, Petitioner's Support Calculations with supporting assumptions, and Reply Declaration. Father also lodged his 2024 and 2025 income tax returns, with June 2026 paystub, and 7/18/2026 random drug test results under seal.

Child Custody/Visitation

There are no prior custody/visitation orders in this case. Father requests the parties share joint legal and physical custody of Skyla and a structured transition plan leading to a 2-2-5-5 schedule. Father states that while the parties lived together as a family, he was actively involved in Skyla's daily care, schooling and activities. He took care of enrolling Skyla in preschool through first grade at Old Mill School, enrolled in her extracurricular activities and transported her to and from school and activities. However, Father says that since the parties ceased living together in October 2024, Mother denies him access to Skyla and restricts his time and communications with Skyla, without explanation. His time with Skyla has averaged two hour to hour and a half

visits per week, with no overnights. Mother does not permit Father to drive with Skyla during his time.

Mother states that she has been primarily responsible for Skyla's day-to-day care since birth, including overnights, medical care and appointments, homework, meals and nutrition, bedtime routines, playdates and coordination of her educational and developmental needs. She requests a structured and consistent custodial schedule which ensures Father's sobriety with alcohol testing via Soberlink and random drug testing and proposes a phased-up increase in Father's time. Mother denies ever having denied Father access to Skyla but has limited his visits to her home, a park or another public place, and will not allow him to drive Skyla based on safety concerns given Father's history of substance abuse and refusal to engage in testing. Mother states that she is agreeable to

The parties were referred to Family Court Services ("FCS"), were interviewed together on 5/8/2026, and FCS filed its Report & Recommendations with the court on 7/14/2026.

Having reviewed all of the parties' written submissions, as well as the FCS Report & Recommendations, the Court finds that it is in the best interests of Skyla to adopt the FCS recommendations, as modified below and, therefore orders as follows:

Parental Responsibilities

1. The parents shall share joint legal custody of Skyla. The parents shall share in the responsibility and confer in good faith on matters concerning the child's health, education and welfare. Both parents shall have access to the child's school, medical, mental health, and dental records and the right to consult with professionals who are providing services to the child.
2. The parents shall share joint physical custody of Skyla.

Time-Share

3. **Beginning 7-24-26:** Skyla shall continue to live primarily with Mother and shall be with Father Wednesday and Friday from after school (or daycamp) until 6:30 p.m. and every Sunday (except the 1st Sunday of the month) from 11:00 to 2:00 p.m.
4. **Beginning 9-24-26:** The schedule shall remain the same but with the Sunday visits expanding to 10:00 a.m. to 6:00 p.m.
5. Any additional time for Skyla to be with Father, or any changes to the schedule, shall occur as arranged and agreed upon by the parents.
6. In addition to visits, Father shall have a Facetime call with Skyla two times each week on a schedule agreed upon by the parents.

Collateral Issues

7. Father shall maintain his sobriety. Father shall not consume any alcohol, illegal substances (or any legal substances beyond their prescribed amount), or ketamine.
8. Father shall test with Soberlink three times each day (every day, including days Skyla is not in his care) at 9:00 a.m., 2:00 p.m., and 9:00 p.m. If any of his tests are positive or missed, then the next visit shall be cancelled. If any tests are positive or missed while Skyla is in his care, then the visit shall end immediately, and subsequent visits shall be supervised.
9. Father shall randomly drug test 4 times each month. The testing shall be a 10-panel urinalysis with an add on for Ketamine. In the alternative, Father could agree to a monthly hair follicle test. Any missed or positive tests shall result in his visits being supervised.
10. Both parents shall take a co-parenting class and bring proof of successful completion to any future mediations or court hearings.
11. Skyla shall be exposed to peaceful contact only between her parents and any other adults.
12. Neither parent shall make any disparaging comments about the other parent in the presence of Skyla, or allow others to do so.
13. The parents shall be referred back to Family Court Services for a review of the custody issues in December of 2026. The matter is set for review hearing on January 9, 2027 at 9:00 am in Department E.

Child Support

Father requests an order for guideline child support. Mother agrees to a guideline support order with an annual true-up of bonus support in March of each year (for the prior year), and an allocation of child care expenses per Family Code §4061.

The Court has reviewed the parties' respective Xspouse calculations. The parties' respective calculations differ on several assumptions: Mother's income on her calculation is slightly higher income on her calculation; and Mother's 401(k) and property tax and mortgage interest deductions are also higher than on Father's calculation.

The calculations also differ on Father's time-share, with Mother attributes a 12% timeshare for Father, and he claims 20%. Rule 7.1 of the Marin County Family Rules of Court provides guidance on time-share calculations. In particular, it provides the Court will presume a 20% time-share to be equal to alternating full weekends. The Court finds Father's timeshare to be well below the equivalent of alternating full weekends; arguably, Father's three-hour visits are not even ½ day. Therefore, the Court adopts 12% as Father's timeshare and adopts Mother's Xspouse calculation and bonus schedules and orders as follows:

1. Effective 4/22/2026, Father shall pay to Mother the sum of \$765 per month as and for guideline child support for the benefit of Skyla. Said support shall be paid on or before the 1st day of each month.
2. To the extent that Father's income exceeds \$12,500/month, Father shall pay bonus child support on such income in excess of \$12,500 in accordance with the bonus schedule attached to the Xspouse calculation as Exhibit "A."¹
3. To the extent that Mother's income exceeds \$35,850/month, Father shall receive a credit against his child support payment for the income Mother receives in excess of \$35,850, calculated in accordance with the bonus table attached to the Xspouse calculation as Exhibit "B."
 - a. Unless the parties agree otherwise, the party whose income exceeds the amount designated in the attached Xspouse calculation shall report to the other party, and provide verification of any such excess income, within 15 days of receiving such additional income. Father shall pay bonus child support to Mother within 30 days of receiving such income. In the event Mother has bonus income, Father will receive a credit, which amount shall be deducted from his next monthly child support payment.
4. Child support shall continue until (1) the child reaches the age of 18, or if still a full-time student in high school at age 18, until the child reaches age 19 or graduates from high school, whichever first occurs; (2) the child dies; or (3) the child is emancipated. The amount of child support is modifiable if there is a material change of circumstances for either party.
5. In addition, per Family Code §§4061(b) and 4062, the parties shall share, with Mother paying 75% Mother and Father paying 25%) all reasonable, uninsured medical expenses and dental expenses incurred on behalf of the children, as well as childcare costs related to either party's employment or reasonably necessary education or training for employment skills. The parties are ordered to comply with the provisions of Family Code § 4063 in seeking reimbursement for uninsured medical and dental expenses, and a copy of the NOTICE OF RIGHTS AND RESPONSIBILITIES – Health-Care Costs and Reimbursement Procedures is attached to the Order After Hearing. These provisions shall apply to reimbursement for childcare expenses, as well.

Attorneys' Fees and Costs

Father seeks an order for Mother to pay him \$4,020 for attorneys' fees and \$672.25 for costs per Family Code §2030. Mother offers to pay 75% of Father's fee request, or \$3,519.

¹ Due to the number of pages in Exhibits A and B, the Court has not attached them to its tentative ruling, but will attach them to the Findings & Order After Hearing.

Mother's monthly base salary of \$35,850 is just under 3 times Father's monthly base salary of \$12,500. In addition, she receives bonus income and RSUs; her 2025 income tax return shows total income of over \$1million. She has \$30,000 in deposit accounts, \$500,000 in securities she could easily sell, and property valued at \$1.7 million. Her monthly living expenses are \$36,806, and she has no outstanding debts or installment payments.

Father earns \$12,500/month, with bonus income. He has \$18,775 in deposit accounts, \$6,159 in securities he could easily sell, and claims no property of any value.

Given the significant disparity in the parties' income, and Mother's ability to pay, the Court orders as follows:

1. Mother shall pay to Father the sum of \$672.25 as and for attorneys' fees and costs pursuant to Family Code §2030. Said payment shall be made no later than 7/31/2026., 2026.

Note: Mother's Statement of Agreement/Disagreement did not reach the Court before completing this tentative ruling; however, it will be reviewed prior to tomorrow's hearing.

Counsel for Mother shall prepare the order

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Court website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.